

25STCV07424 25STCV07424

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-02

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Case Number: 25STCV07424 Hearing Date: July 2, 2026 Dept: 512

HEARING DATE: Thurs., July 2, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Barbour

v. General Motors, LLC COMP.

FILED: 03-14-25

CASE NUMBER: 25STCV07424

NOTICE: OK

PROCEEDINGS: MOTION

TO TRANSFER VENUE

MOVING PARTY: Defendant

General Motors, LLC

RESP. PARTY: None

MOTION TO TRANSFER VENUE

(CCP §§ 396b, 397)

TENTATIVE RULING:

Defendant General Motors, LLC's Motion
to Transfer Venue is DENIED.

Moving party is ordered to give

notice.

SERVICE:

☒ Proof of

Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address

(CCP §§ 1013, 1013a) OK

☒ 16/21 Court

Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of June 30, 2026 ☐ Late ☒

None

REPLY: None

filed as of June 30, 2026 ☐

Late ☒ None

ANALYSIS:

I.

Background

On March 14, 2025, Plaintiffs David

Andrew Barbour and Luisa J. Barbour ("Plaintiffs") filed the instant Complaint for Violation of Statutory Obligations against Defendant General Motors, LLC ("Defendant") and Does 1-10.

On September 4, 2025, the Court

overruled Defendant's Demurrer to the Complaint. (9/4/25 Order.)

That same day, Defendant filed an

Answer.

On June 1, 2026, Defendant filed the

instant Motion to Transfer Venue (the "Motion").

No Opposition has been filed.

II.

Discussion

Defendant moves to transfer the instant action to San Bernardino County “because that is the county where the Plaintiff resides, and the county where all warranty repairs occurred; there is no nexus to Los Angeles County.” (Motion, p. 2, Allison Decl.)

Code of Civil Procedure section 396b states in pertinent part:

Except as otherwise provided in Section 396a, if an action or proceeding is commenced in a court having jurisdiction of the subject matter thereof, other than the court designated as the proper court for the trial thereof, under this title, the action may, notwithstanding, be tried in the court where commenced, unless the defendant, at the time he or she answers, demurs, or moves to strike, or, at his or her option, without answering, demurring, or moving to strike and within the time otherwise allowed to respond to the complaint, files with the clerk, a notice of motion for an order transferring the action or proceeding to the proper court, together with proof of service, upon the adverse party, of a copy of those papers. Upon the hearing of the motion the court shall, if it appears that the action or proceeding was not commenced in the proper court, order the action or proceeding transferred to the proper court.

(Code Civ. Proc., § 396b, subd. (a), emphasis added.)

Here, the Court finds the instant Motion was filed approximately 11 months after Defendant demurred to the Complaint and nine months after Defendant answered the Complaint. Code of Civil Procedure section 396b requires that a defendant move to transfer venue within the time permitted to plead unless extended by stipulation or court order. (See Code Civ. Proc., § 396b, subd.

(a).) Defendant failed to move to transfer venue within the time allotted by statute and fails to provide any evidence of a stipulation or a court order regarding transfer of venue justifying the delay. As such, the Motion is

untimely under Code of Civil Procedure section 396b.

Thus, the Motion
is DENIED.

III.

Conclusion & Order

Defendant General Motors, LLC's Motion
to Transfer Venue is DENIED.

Moving party is ordered to give
notice.